

THE TRUE PUBLIC ENEMY

The War on Drugs' Role in Mass Incarceration and Harsh Policing

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In June 1971, President Richard Nixon declared an offensive on drugs. Thrown into action by a supposed all-time high of drug use in 1979 and by the media's sensationalization of this phenomenon, newly elected, neoconservative president Ronald Reagan continued his predecessor's campaign against this "enemy" of the United States. Especially as race began to split the country, more liberal white groups shifted to the movement of conservatism, which held more religious and traditional values. With the over-sensationalized media coverage of black-on-white crime and the importation of drugs into the country, the presidential administration furthered a new, harsher stance towards drugs, colloquially known as the "war on drugs," which influenced how the criminal "justice" system would define crime and approach punishment going forward, especially for African-Americans. The war on drugs of the late 20th century shaped mass incarceration and harsh policing against people of color in America through the militarization of the police, the creation of a tough-on-crime public opinion, which led to the perceived "crack baby" epidemic and harsh mandatory sentencing policies, and through the disproportionate legislation of crack vs. powder cocaine users. Ultimately, these initiatives influenced cycles of generational poverty amongst African Americans and advanced racial inequality.

The militarized mentality of the initiative against drugs in the 1980s, which took form in governmental programs and presidential policies, guided the surge in mass incarceration and the beginnings of harsh policing in America. Nixon declared drugs, in 1971, as "public enemy number one," requiring an "all-out offensive." In this speech, with the repetition of such aggressive military language around enforcement and legislation, Nixon encouraged a direct attack against drugs. As such, the war on drugs militarized counter-drug

initiatives and shaped them to become harsher and more aggressive, which explains harsh policing. The people in the Roxbury community, feeling that drugs had become a serious threat in 1988, called for the National Guard; indeed, the call for militarization and the perception of drug abuse as an “enemy” shifted public opinion. They began to believe that military interference was necessary to end drugs, when in fact, as Senator Carey explained, it only worsened the situation. Consequently, as noted by students in *The Montgazette*, the use of the military in counter-drug initiatives directly connected to mass incarceration; in fact, when the Navy and Coast Guard, both part of the U.S. armed forces, collaborated in Florida with the Federal Bureau of Investigation and the Drug Enforcement Administration, an organization formed for the sole purpose of countering drugs, arrest rates for drugs “doubled overnight.” The militarized arrest initiative would increase the rate of conviction, and as *The Montgazette*’s writers further explained, these increased rates would require the expansion of “prisons [which were] already grossly overcrowded.” As such, militarization, as it correlated to more aggressive language and military initiatives against drugs, contributed greatly to mass incarceration and harsh policing.

Similarly, the militarized outlook of police officers contributed to racially biased harsh policing. As William Celester, a Roxbury deputy superintendent who oversaw the operations of crime prevention and of police management, argued for stop-and-search in 1990 and repeated “war,” police militarized themselves through stop-and-search because they began to believe that “some people need[ed] to be scared, because [...] that [was] the only thing [they] under[stood].” Celester’s assertion that fear was necessary to counter drugs illustrates how fear became a primary factor in policing, for police officers saw themselves as fighting a perceived ‘war’ on drugs. Roxbury Police Department highlighted that stop-and-search was a direct result of militarization because it was through this policy that they could use “fear” to fight the “war.” Moreover, the most frequent victims of this militarization that took form in stop-and-search were African-American men. In fact, in a news report about Roxbury in the face of the war on drugs in 1988, police officers stopped an African-American man unjustifiably and frisked him as citizens asked for an increased police presence to put an end to drug crime. This interaction not only exemplifies the pattern of how police officers used only their “reasonable” suggestion to stop Black men but also how police officers linked drug crime innately with African Americans, which resulted in these unreasonable stops. As *Vice Magazine* revealed during the rise of Black Lives Matter in response to George Floyd’s murder, this internally biased association between Black people and drugs came from “a long time ago, with white folks worried about Black folks

being violent on drugs.” Furthermore, because the number of drug offenders arrested were primarily from minority communities, especially African-Americans, these initiatives of stop-and-search would directly cause racially biased mass incarceration. Even with supposedly softer drugs, like cannabis, than those of the 1980s which led to the massively disproportionate and unfair incarceration of Black people, police officers justified their attacks because they had been taught that this measure against drugs was a ‘war.’ Hence, according to Dr. Reed T. DeAngelis, a public health scholar who investigated this behavior in her article “Systematic Racism in Police Killings,” through the lens of a perceived need for military action within the police, police officers disproportionately stopped and used violence against Black men in inner-cities, perpetuating racial biases and stereotypes. As a result, police brutality has persisted as a systematic problem, despite the objections and movements of many communities fighting racial injustice.

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Simultaneously, the militarization of the police force through the police department’s expanded access to military arms also shaped harsh policing. In 1997, the National Defense Authorization Act permitted that the government “[might] transfer to Federal and State agencies [...] small arms and ammunition, that [...] [were] [...] suitable for use [...] in [...] counter-drug [...] activities.” In doing so, the increased police funding for fighting drug-related crimes, the adoption of more militarized equipment like large caliber weapons, and the creation of Special Weapons and Tactics (SWAT), which all increased the rate of drug convictions, militarized the police. Additionally, Dr. Zach Baumgart, a sociologist who has specialized in race and criminal justice, proved in his dissertation that this phenomenon of mass incarceration and convictions influenced by the war on drugs’ militarization of police disproportionately affected African-Americans, especially in poorer communities. For example, the militarization of the police by the war on drugs made it so that the majority of interactions between armed police and unarmed black people were about drugs, which were then used to supposedly justify the violent behavior of that same officer. SWAT, a symptom of the militarization of police in the 1980s, carried out more search warrants than any other targeted action, warrants which used no-knock raids most commonly and have been shown to disproportionately affect Black people. Furthermore, these no-knock raids were legally ambiguous as judges relied almost exclusively on the opinion of police officers to determine the validity of the warrant. Most often, a simple estimation that the suspect might be “armed” was “reasonable” enough to provide a no-knock warrant, except neither physical nor proof of past actions of the warrant’s subject was provided. As such, the police’s expanded access to military arms during the war on

drugs perpetuated massive racial inequality and mistreatment in the criminal justice system. Comparatively to other races and people living in higher-income communities, the war on drugs ensured that poor Black people in fact would not receive the same regard, and it characterized poor Black people by a historical stereotype fueled by these counter-drug actions.

During the same period, the misconception of the “crack baby” epidemic led to a shift in public opinion toward a more tough-on-crime mentality, which incited the cycle of biased mass incarceration. In 1998, surveys conducted by the Washington Post indicated that public opinion had become increasingly tough on crime, even as crime rates as well as drug use dropped. This disparity between fact and perception displays how the public’s tough-on-crime opinion was based on many misconceptions. Such misconceptions, most especially concerning cocaine mothers and babies, were present particularly in Nancy Reagan’s “Just Say No” initiative. In her first address to the nation on this policy in 1986, she asserted that “one of the main purposes” of the war on drugs, was to create a “new awareness of how terrible and threatening drug abuse [was] to [American] society,” especially in the case of a “child born to a mother with a cocaine habit,” a child who “suffer[ed] as a result.” She emphasized how much influence the public had over the harsher sentences during the period of the late 20th century by calling the public on to “create an out-spoken intolerance for drug use” and to “be unyielding and inflexible in [their] opposition to drugs.” Her calls to action hence demonstrate how essential it was for the campaign against drugs that the public maintained a harsh and punitive stance on drug use, further illustrating how this strict outlook on crime developed with this over-sensationalized fear of unfounded issues like perceived “crack babies.”

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However, this supposed epidemic was not as dire as stated by Mrs. Reagan and still carries effects in modern times. False studies and the misinterpretation of symptoms resulting from premature birth, not cocaine, fueled the perception of a “crack baby” epidemic, and mass media facilitated this falsified spread with its broadcast of superficial information, as Michael Winerip admitted retrospectively in *The New York Times*. Finally, misconceptions from this perceived epidemic stigmatized drug users, particularly Black women who lived in inner cities. Indeed, Adrianna Finnamore, a scholar in the field of public history, posited in 2022 that this treatment not only caused contempt but also systematic mistreatment, especially in the justice system, against victims of drug use that did not exist. Misconceptions from the war on drugs era, surrounding “crack babies” and an alleged epidemic, still affect people of color in modern times, especially Black women.

The disproportionate rate of drug testing for Black women compared to white women, according to *The New York Times*, despite the increased likelihood of white women to test positive, explains how an unfounded public panic from the 1980s has caused the contemporary marginalization and discrimination against Black women. Moreover, the same *New York Times* article revealed deeper issues; in a modern case study of a mother supposedly using drugs in the Bronx, neither did government services have proper grounds to remove the child from the mother nor did the hospital in which the child was born acquire the mother's consent before drug-testing her and her child. The complete disregard for the legal rights of motherhood for this Black woman demonstrates how the rights and protections of Black people, women especially, have been consistently violated because of public misconceptions. As such, the misconceptions and over-sensationalized media reports of the war on drugs had and have continued to perpetuate real consequences that have affected the lives of new Black mothers and that have created a system in which Black women are not treated equally compared to their white counterparts.

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While misconceptions fueled mistreatment, the public's increasingly aggressive outlook on crime simultaneously caused the large phenomenon of mandatory sentencing policies, which created a system of disproportionate punishment, particularly against people of color. In a radio address to the nation in 1982, Ronald Reagan, president at the time, asserted that the "mood toward drugs [was] changing in [America]" and that "the momentum [was] with [the movement]." President Reagan's public statements proved that initiatives of shifting public opinion and appealing to the public, as Mrs. Reagan had just been doing, were highly effective at the time in turning the public tough on crime. In fact, by using the pronoun "we" in his claim that no drugs would be tolerated at all, he was gathering the population in his movement and claiming the war on drugs as a collective initiative that the people had to participate in. Consequently, as the public shifted to a more tough-on-crime mentality, the Anti-Drug Abuse Act of 1988, a key legislative action of the war on drugs, established that once an individual had committed a third offense "after two or more prior convictions for a felony drug offense [had] become final, such person [would] be sentenced to a mandatory term of life imprisonment without release and fined in accordance with the preceding sentence." The Pew Research Center, a reputable non-partisan think tank, exhibited in a 2001 report that endorsement for mandatory minimum sentencing policies and mass incarceration for drug users increased as a result of the fear of drug-related crimes and perception of drugs as a top national priority, even as crime and drug use decreased. Yet, disproportionate convictions existed under the ini-

tatives of mandatory sentencing. This unequal treatment targeted Black drug offenders, as before mandatory sentencing, white people were more likely to be convicted of drug trafficking than Black people were, but this trend reversed as mandatory sentencing appeared. Presidential addresses to the public served to shift the public's opinion on crime to a more punitive one, and this aggressive mentality resulted in policies of minimum mandatory sentencing policies. As such, the system of mandatory sentencing invoked a racial disparity in sentencing, that then has catalyzed not only mass incarceration and overcrowded prisons but also systemic cycles of crime and generational poverty for people of color who further involved themselves in crime as a result of their time in prison and their stigmatized status as felons. These policies fueled by public advocacy have hence created a system in which Black people could not escape the cycle they have been trapped in, enclosed in a box of America's racially unjust history and its persistence in the modern age.

Concurrently, the difference in punitive legal actions in response to powder versus crack cocaine users created a major disparity in the mass incarceration that disproportionately affected Black people. In 1986, the Anti-Drug Abuse Act instituted a policy that a person possessing "500 grams or more of a mixture or substance containing a detectable amount of [...] cocaine" compared to "5 grams or more of a [...] substance [...] which contain[ed] cocaine base [...]" would "be sentenced to a term of imprisonment [...] not [...] less than 5 years and not more than 40 years." However, The Roanoke Times noted in 1996 that crack, being cheaper, was more common in low-income minority communities, which caused 90% of drug offenders sentenced for crack possession to be Black whereas most users of powder cocaine were white. As such, this 100-to-1 disparity between powder and crack cocaine unreasonably targeted more people in low-income communities, even though the two substances shared almost identical chemical compositions and crack did not instigate any more violence than the powdered cocaine. As Craig Reinerman and Harry Levine reviewed in the Social Justice journal, in the middle of the 1980s, crack use spread toward inner cities, consisting primarily of poor African-Americans and Latinos, while before that, users of crack were wealthy, white celebrities, at which point the response to crack use was not imprisonment but rehabilitation. Subsequently, the decision of the court case *State of Minnesota v. Russell* in 1991 agreed that there existed a racial disparity in the users of crack cocaine vs. cocaine powder, which led to a larger percentage of black people being arrested for possession of crack cocaine than white people were. In this case, the threshold for intent to sell, which held a more punitive sentence, was lower for crack cocaine than for powder cocaine, and as users of crack cocaine were more Black

than white individuals, this threshold fueled racially biased mass incarceration. Finally, the Supreme Court of Minnesota affirmed that the distinction was unconstitutional, having violated the equal protection clause of the Constitution's Fourteenth Amendment. Hence, in a country where people espoused justice and celebrated liberty, Black people during the war on drugs lived a contradictory experience, in which their own country violated their supposedly guaranteed rights. The difference in the legislative punishment for powder versus crack cocaine users highlights the inherently racial nature of the war on drugs, where Black men faced both disproportionate violence and punishment for crimes not so different from those of their white counterparts. Also, though the Fair Sentencing Act of 2010 has replaced the previous 100:1 ratio between crack and powder cocaine sentencing with a ratio of 18:1, scientific evidence hereinabove has demonstrated that the dangers of the two substances are not so different that such a ratio may be acquired. Crack versus powder cocaine legislation thus reveals an innate bias that pervaded in the era of the war on drugs and its policies. Furthermore, Nathália Duarte Bard in her article, "Stigma and prejudice: the experience of crack users," confirms that while progress has been made, the effects of this imbalance still ring clear, as crack users face considerably more stigma than cocaine users, glorified from Wall Street to Hollywood as hard-workers using drugs for fun. Consequently, apart from political and social inequality, American culture from the war on drugs, still persistent in the modern-day, has also sustained a system of white worship and Black condemnation.

Though some might argue that both Nixon and Reagan held plans for rehabilitation and research, rehabilitation was neither properly pursued nor were the initiatives of these presidents based on reliable research. If Nixon and Reagan had pursued that rehabilitative approach, the punitive nature of that era, which caused mass incarceration and harsh policing, would then be negated. For example, in a Special Message to Congress in 1969, Nixon, during his presidency, declared that "psychologically dependent regular users and the physically addicted [were] genuinely sick people," and that consequently, "federal, state and private programs of rehabilitation were being operated" and "all Federal prisoners, who [had] been identified as dependent upon drugs, [would] be afforded the most up-to-date treatment available." Yet, Nixon's specific language of the operation of programs and of the promise of treatment disguised the fact that Nixon did not affirm any actual progress or benefit for drug addicts and made only a promise, without results, that prisons would treat drug offenders. Moreover, John Erlichman, a co-conspirator in the Watergate scandal and Assistant to the President of Domestic Affairs during the Nixon administration admit-

ted in a more contemporary interview that Nixon felt he had two problems: “the antiwar left and black people,” which Nixon felt the war on drugs would criminalize “hippies” for their association with marijuana and “blacks” for theirs with heroin, which would allow law enforcement to abuse their power. Accordingly, Nixon could not have advocated for rehabilitation if he wanted to use the war on drugs to punish his two supposed problems. Furthermore, though drug treatment programs did exist to a certain extent in the 1980s, they were only available to less than 5% of the prison population. This unavailability of treatment to the majority of the population hence negates Nixon’s assertions and proves them to be unfounded. Additionally, Ronald Reagan, later on, in believing that drugs could not be controlled and in perceiving that he was at “war,” sought to pour money into law enforcement rather than into rehabilitation and prevention programs, to the extent that 80% of the federal drug budget was allocated to prosecution & policing. Finally, Senator Carey, when he had to face the militarized response to the public on crime in 1988, noted how Reagan was not building the promised treatment centers and that the public was much more focused on punitive action than rehabilitation. Therefore, despite the promise of the creation of rehabilitation centers, neither Nixon nor Reagan fulfilled their assurances to the nation and instead turned to more punitive policies in response to drug use and addiction.

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The war on drugs’s policies of police militarization in several forms, its shifts in public opinion toward a tough-on-crime stance, and its unequal legislation of crack versus powder cocaine furthered mass incarceration and harsh policing behind the backdrop of a racially-charged American history. As a result of the war on drugs, racially biased mass incarceration & harsh policing have perpetuated cycles of racial inequality and marginalization. As a continuation of the sullied history of America in regards to the treatment of Black people, abused in the justice system, the war on drugs makes it necessary to consider how people contemporarily respond to these injustices, like through movements of Black Lives Matter and Defund the Police, to investigate the efficacy of modern responses to historical controversies. Consequently, though part of society believes that it has progressed from the era of America’s racist past, American systems remain deeply entrenched in the cycles of inequality that have pervaded history and thus require equitable & general affirmative action to break the glass ceiling of systemic racism.

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